# SPECIAL PROVISIONS

**PART XXI SCOPE → ARTICLE 370 STATUS → ARTICLE 371 AMENDMENT LADDER → DEVELOPMENT → CONSENT → COMMITTEES → LOCAL OPPORTUNITY → SCHEDULE FIREWALL → EXAM SYNTHESIS**

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

● PRIMARY CORE FLOW ● SUBORDINATE EXTRA ● APPROVAL / REVIEW

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

Approval: FALSE • Pending user review • active generation g3 • explicit approval of this exact generation is required • all prior artifacts unchanged

## 00 STAGE 00 — PART XXI SCOPE AND ASYMMETRY ARCHITECTURE

PART XXI: TEMPORARY, TRANSITIONAL AND SPECIAL PROVISIONS · ONE UNION -> ordinary State framework + purpose-specific constitutional difference. · THIS TOPIC OWNS · Articles 371-371J; minimum Article 370/35A status needed for legal distinction. · CROSS-OWNED · Fifth/Sixth Schedules -> Polity 26 | J&K/Ladakh UT machinery -> Polity 25. · ANSWER LINE · Equality permits calibrated difference; special treatment remains inside one Constitution.

**PART XXI: TEMPORARY, TRANSITIONAL AND SPECIAL PROVISIONS**

ONE UNION -> ordinary State framework + purpose-specific constitutional difference. → THIS TOPIC OWNS → Articles 371-371J; minimum Article 370/35A status needed for legal distinction.

**CONSTITUTIONAL BASIS**

- PART XXI: TEMPORARY, TRANSITIONAL AND SPECIAL PROVISIONS
- ONE UNION -> ordinary State framework + purpose-specific constitutional difference.
- THIS TOPIC OWNS

**POWER / PROCEDURE**

- Articles 371-371J; minimum Article 370/35A status needed for legal distinction.
- CROSS-OWNED
- Fifth/Sixth Schedules -> Polity 26 | J&K/Ladakh UT machinery -> Polity 25.

**CHECK / LIMIT**

- ANSWER LINE
- Equality permits calibrated difference; special treatment remains inside one Constitution.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Equality permits calibrated difference; special treatment remains inside one Constitution.**

## 01 STAGE 01 — ARTICLE 370 AND ARTICLE 35A LEGAL TIMELINE

1947 accession -> Article 370 temporary application mechanism -> 1954 Order inserts Article 35A · -> J&K Constituent Assembly dissolves in 1957 -> Presidential-Order practice continues. · 5 AUGUST 2019: C.O. 272 applies Constitution comprehensively. · 6 AUGUST 2019: C.O. 273 renders former Article 370 provisions inoperative. · 31 OCTOBER 2019: Reorganisation creates J&K UT with legislature + Ladakh UT without. · TRAP: printed in text does not mean operative; Article 35A is not a current guarantee. · Sampat Prakash (1968)

1947 accession -> Article 370 temporary application mechanism -> 1954 Order inserts Article 35A → -> J&K Constituent Assembly dissolves in 1957 -> Presidential-Order practice continues. → 5 AUGUST 2019: C.O. 272 applies Constitution comprehensively. → 6 AUGUST 2019: C.O. 273 renders former Article 370 provisions inoperative. → 31 OCTOBER 2019: Reorganisation creates J&K UT with legislature + Ladakh UT without.

**CONSTITUTIONAL BASIS**

- 1947 accession -> Article 370 temporary application mechanism -> 1954 Order inserts Article 35A
- -> J&K Constituent Assembly dissolves in 1957 -> Presidential-Order practice continues.
- 5 AUGUST 2019: C.O. 272 applies Constitution comprehensively.
- Sampat Prakash (1968)

**POWER / PROCEDURE**

- 6 AUGUST 2019: C.O. 273 renders former Article 370 provisions inoperative.
- 31 OCTOBER 2019: Reorganisation creates J&K UT with legislature + Ladakh UT without.
- TRAP: printed in text does not mean operative; Article 35A is not a current guarantee.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP: printed in text does not mean operative; Article 35A is not a current guarantee.**

## 02 STAGE 02 — IN RE ARTICLE 370 AND CURRENT FEDERAL STATUS

IN RE ARTICLE 370 (2023) · Temporary provision | no separate internal sovereignty | Article 370(3) power survived 1957 · | constitutional result upheld | Article 367 route unnecessary/invalid to the stated extent. · NOT FINALLY DECIDED · Permanent validity of converting J&K State into Union Territories. · CURRENT 28 AUGUST 2026 · J&K: UT with elected legislature; Statehood pending, no judicial deadline. · Ladakh: UT without legislature; Statehood/Sixth Schedule demands remain unenacted. · In Re: Article 370 of the Constitution (2023)

IN RE ARTICLE 370 (2023) → Temporary provision | no separate internal sovereignty | Article 370(3) power survived 1957 → | constitutional result upheld | Article 367 route unnecessary/invalid to the stated extent. → NOT FINALLY DECIDED → Permanent validity of converting J&K State into Union Territories.

**CONSTITUTIONAL BASIS**

- IN RE ARTICLE 370 (2023)
- Temporary provision | no separate internal sovereignty | Article 370(3) power survived 1957
- | constitutional result upheld | Article 367 route unnecessary/invalid to the stated extent.
- In Re: Article 370 of the Constitution (2023)

**POWER / PROCEDURE**

- NOT FINALLY DECIDED
- Permanent validity of converting J&K State into Union Territories.
- CURRENT 28 AUGUST 2026

**CHECK / LIMIT**

- J&K: UT with elected legislature; Statehood pending, no judicial deadline.
- Ladakh: UT without legislature; Statehood/Sixth Schedule demands remain unenacted.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Ladakh: UT without legislature; Statehood/Sixth Schedule demands remain unenacted.**

## 03 STAGE 03 — ARTICLE 371 AMENDMENT AND ACTOR LADDER

371: Maharashtra/Gujarat -> President may assign Governor regional-development responsibility. · 371A 13th (1962) | 371B 22nd (1969) | 371C 27th (1971). · 371D/E 32nd (1973), 371D adapted to Telangana by 2014 reorganisation law. · 371F 36th (1975) | 371G 53rd (1986) | 371H 55th (1986). · 371I 56th (1987) | 371J 98th (2012; effective 2013). · MEMORY FORMULA: STATE -> ARTICLE -> AMENDMENT -> ACTOR -> PROTECTED INTEREST.

**CONSTITUTIONAL BASIS**

- 371: Maharashtra/Gujarat -> President may assign Governor regional-development responsibility.
- 371A 13th (1962) | 371B 22nd (1969) | 371C 27th (1971).
- 371D/E 32nd (1973), 371D adapted to Telangana by 2014 reorganisation law.

**POWER / PROCEDURE**

- 371F 36th (1975) | 371G 53rd (1986) | 371H 55th (1986).
- 371I 56th (1987) | 371J 98th (2012; effective 2013).
- MEMORY FORMULA: STATE -> ARTICLE -> AMENDMENT -> ACTOR -> PROTECTED INTEREST.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MEMORY FORMULA: STATE -> ARTICLE -> AMENDMENT -> ACTOR -> PROTECTED INTEREST.**

## 04 STAGE 04 — DEVELOPMENT MODELS: ARTICLES 371 AND 371J

ARTICLE 371 — MAHARASHTRA/GUJARAT · President order -> Governor special responsibility -> separate boards + annual Assembly reports · -> equitable development funds + technical/vocational and State-service opportunity. · ARTICLE 371J — KARNATAKA · Constitution says Hyderabad-Karnataka; current official name: Kalyana Karnataka. · President order may provide board, equitable funds/opportunity and proportionate local seats/posts · for persons belonging by birth or domicile. No fixed percentage appears in Article 371J itself.

**ARTICLE 371 — MAHARASHTRA/GUJARAT**

President order -> Governor special responsibility -> separate boards + annual Assembly reports → -> equitable development funds + technical/vocational and State-service opportunity. → ARTICLE 371J — KARNATAKA

**CONSTITUTIONAL BASIS**

- ARTICLE 371 — MAHARASHTRA/GUJARAT
- President order -> Governor special responsibility -> separate boards + annual Assembly reports
- -> equitable development funds + technical/vocational and State-service opportunity.

**POWER / PROCEDURE**

- ARTICLE 371J — KARNATAKA
- Constitution says Hyderabad-Karnataka; current official name: Kalyana Karnataka.
- President order may provide board, equitable funds/opportunity and proportionate local seats/posts

**CHECK / LIMIT**

- for persons belonging by birth or domicile. No fixed percentage appears in Article 371J itself.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: for persons belonging by birth or domicile. No fixed percentage appears in Article 371J itself.**

## 05 STAGE 05 — CONSENT SHIELDS: NAGALAND AND MIZORAM

ARTICLE 371A — NAGALAND · Assembly resolution required for Parliamentary law on Naga religious/social practices. · customary law/procedure, customary civil-criminal justice, and land/resources. · Also contains Tuensang and bounded transitional Governor law-order arrangements. · ARTICLE 371G — MIZORAM · Parallel shield for Mizo practices, customary law/procedure, customary justice and land. · Assembly minimum 40. · TRAP: subject-specific consent is not a general parliamentary veto.

**ARTICLE 371A — NAGALAND**

Assembly resolution required for Parliamentary law on Naga religious/social practices. → customary law/procedure, customary civil-criminal justice, and land/resources. → Also contains Tuensang and bounded transitional Governor law-order arrangements.

**CONSTITUTIONAL BASIS**

- ARTICLE 371A — NAGALAND
- Assembly resolution required for Parliamentary law on Naga religious/social practices.
- customary law/procedure, customary civil-criminal justice, and land/resources.

**POWER / PROCEDURE**

- Also contains Tuensang and bounded transitional Governor law-order arrangements.
- ARTICLE 371G — MIZORAM
- Parallel shield for Mizo practices, customary law/procedure, customary justice and land.

**CHECK / LIMIT**

- Assembly minimum 40.
- TRAP: subject-specific consent is not a general parliamentary veto.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP: subject-specific consent is not a general parliamentary veto.**

## 06 STAGE 06 — COMMITTEE MODELS: ASSAM AND MANIPUR

ARTICLE 371B — ASSAM · President may constitute an Assembly committee of members from specified tribal areas · plus such other Assembly members as the order provides. · ARTICLE 371C — MANIPUR · President structures Hill Areas Committee and State-business rules. · Governor has special responsibility, reports annually to President; Union may direct State. · TRAP: neither committee is itself a Sixth Schedule autonomous district council.

**ARTICLE 371B — ASSAM**

President may constitute an Assembly committee of members from specified tribal areas → plus such other Assembly members as the order provides. → ARTICLE 371C — MANIPUR

**CONSTITUTIONAL BASIS**

- ARTICLE 371B — ASSAM
- President may constitute an Assembly committee of members from specified tribal areas
- plus such other Assembly members as the order provides.

**POWER / PROCEDURE**

- ARTICLE 371C — MANIPUR
- President structures Hill Areas Committee and State-business rules.
- Governor has special responsibility, reports annually to President; Union may direct State.

**CHECK / LIMIT**

- TRAP: neither committee is itself a Sixth Schedule autonomous district council.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: TRAP: neither committee is itself a Sixth Schedule autonomous district council.**

## 07 STAGE 07 — LOCAL OPPORTUNITY: ARTICLES 371D AND 371E

ARTICLE 371D — ANDHRA PRADESH AND TELANGANA · President may order equitable public-employment and educational opportunity, local areas/cadres, · and related allocation rules. Section 97 of the 2014 Reorganisation Act adapted the text. · Former Andhra Pradesh Administrative Tribunal abolished by G.S.R. 30(E), 14 January 2020. · ARTICLE 371E — ANDHRA PRADESH ONLY · Parliament may establish a Central University. It is not a reservation clause.

**CONSTITUTIONAL BASIS**

- ARTICLE 371D — ANDHRA PRADESH AND TELANGANA
- President may order equitable public-employment and educational opportunity, local areas/cadres,
- and related allocation rules. Section 97 of the 2014 Reorganisation Act adapted the text.

**POWER / PROCEDURE**

- Former Andhra Pradesh Administrative Tribunal abolished by G.S.R. 30(E), 14 January 2020.
- ARTICLE 371E — ANDHRA PRADESH ONLY
- Parliament may establish a Central University. It is not a reservation clause.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Parliament may establish a Central University. It is not a reservation clause.**

## 08 STAGE 08 — INTEGRATION AND LAW-ORDER MODELS: 371F, 371H, 371I

ARTICLE 371F — SIKKIM · 36th Amendment integration settlement: representation, law/court continuity, one Lok Sabha seat. · Assembly at least 30; Governor discretion for peace/equitable advancement subject to President. · ARTICLE 371H — ARUNACHAL PRADESH · Governor consults ministers but uses individual judgment in bounded law-order responsibility; · President may terminate it. Assembly at least 30. · ARTICLE 371I — GOA: Assembly at least 30; no customary-law shield.

ARTICLE 371F — SIKKIM → 36th Amendment integration settlement: representation, law/court continuity, one Lok Sabha seat. → Assembly at least 30; Governor discretion for peace/equitable advancement subject to President. → ARTICLE 371H — ARUNACHAL PRADESH → Governor consults ministers but uses individual judgment in bounded law-order responsibility;

**CONSTITUTIONAL BASIS**

- ARTICLE 371F — SIKKIM
- 36th Amendment integration settlement: representation, law/court continuity, one Lok Sabha seat.
- Assembly at least 30; Governor discretion for peace/equitable advancement subject to President.

**POWER / PROCEDURE**

- ARTICLE 371H — ARUNACHAL PRADESH
- Governor consults ministers but uses individual judgment in bounded law-order responsibility;
- President may terminate it. Assembly at least 30.

**CHECK / LIMIT**

- ARTICLE 371I — GOA: Assembly at least 30; no customary-law shield.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ARTICLE 371I — GOA: Assembly at least 30; no customary-law shield.**

## 09 STAGE 09 — ARTICLE 371 VERSUS FIFTH AND SIXTH SCHEDULES

ARTICLE 371 FAMILY — Part XXI, State-specific constitutional clauses. · FIFTH SCHEDULE — Article 244(1): Scheduled Areas, President, Governor regulations/reports, TAC. · SIXTH SCHEDULE — Article 244(2): autonomous district/regional councils in Assam, Meghalaya, · Tripura and Mizoram with specified legislative, judicial and fiscal powers. · DO NOT MERGE · 371A/G Assembly consent != Sixth Schedule council autonomy != Fifth Schedule guardianship.

**CONSTITUTIONAL BASIS**

- ARTICLE 371 FAMILY — Part XXI, State-specific constitutional clauses.
- FIFTH SCHEDULE — Article 244(1): Scheduled Areas, President, Governor regulations/reports, TAC.
- SIXTH SCHEDULE — Article 244(2): autonomous district/regional councils in Assam, Meghalaya,

**POWER / PROCEDURE**

- Tripura and Mizoram with specified legislative, judicial and fiscal powers.
- DO NOT MERGE
- 371A/G Assembly consent != Sixth Schedule council autonomy != Fifth Schedule guardianship.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 371A/G Assembly consent != Sixth Schedule council autonomy != Fifth Schedule guardianship.**

## 10 STAGE 10 — PYQ AND CURRENT-INSTITUTION TRAPS

NORTH EASTERN COUNCIL · Statutory under NEC Act, 1971; regional Governors + Chief Ministers + three President nominees. · Union Home Minister chairs; DoNER Minister is Vice-Chair under amended framework. · Not an Article 371 body and not a Sixth Schedule council · CURRENT TRAPS · J&K Statehood pending | Ladakh demands unenacted | AP tribunal abolished · | Kalyana Karnataka is current name, but Article 371J retains Hyderabad-Karnataka wording.

**NORTH EASTERN COUNCIL**

Statutory under NEC Act, 1971; regional Governors + Chief Ministers + three President nominees. → Union Home Minister chairs; DoNER Minister is Vice-Chair under amended framework. → Not an Article 371 body and not a Sixth Schedule council.

**CONSTITUTIONAL BASIS**

- NORTH EASTERN COUNCIL
- Statutory under NEC Act, 1971; regional Governors + Chief Ministers + three President nominees.
- Union Home Minister chairs; DoNER Minister is Vice-Chair under amended framework.

**POWER / PROCEDURE**

- Not an Article 371 body and not a Sixth Schedule council.
- CURRENT TRAPS
- J&K Statehood pending | Ladakh demands unenacted | AP tribunal abolished

**CHECK / LIMIT**

- | Kalyana Karnataka is current name, but Article 371J retains Hyderabad-Karnataka wording.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: | Kalyana Karnataka is current name, but Article 371J retains Hyderabad-Karnataka wording.**

## 11 STAGE 11 — MAINS SYNTHESIS AND QUALIFIED CONCLUSION

MAINS SPINE · Define asymmetry -> classify development/consent/committee/integration models · -> name State, Article, amendment and actor -> show protective benefit · -> test equality, local minorities, accountability and implementation · -> compare Fifth/Sixth Schedules only where relevant -> qualified verdict. · REFORM · Annual reports + outcome data + transparent reservation rules + local participation + review. · CONCLUSION

MAINS SPINE → Define asymmetry -> classify development/consent/committee/integration models → -> name State, Article, amendment and actor -> show protective benefit → -> test equality, local minorities, accountability and implementation → -> compare Fifth/Sixth Schedules only where relevant -> qualified verdict.

**CONSTITUTIONAL BASIS**

- MAINS SPINE
- Define asymmetry -> classify development/consent/committee/integration models
- -> name State, Article, amendment and actor -> show protective benefit

**POWER / PROCEDURE**

- -> test equality, local minorities, accountability and implementation
- -> compare Fifth/Sixth Schedules only where relevant -> qualified verdict.
- REFORM

**CHECK / LIMIT**

- Annual reports + outcome data + transparent reservation rules + local participation + review.
- CONCLUSION
- Indian unity is strengthened by bounded, reviewable difference—not mechanical uniformity.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Indian unity is strengthened by bounded, reviewable difference—not mechanical uniformity.**

## E EXTRA — OPTIONAL ADVANCED — CONSTITUTIONAL METHOD AND DIFFERENTIATED CITIZENSHIP

OPTIONAL ADVANCED — NOT REQUIRED FOR A CORE ANSWER · PRESIDENT'S RULE AND FEDERAL CONSENT · DIFFERENTIATED CITIZENSHIP AND PROPORTIONALITY · BASIC STRUCTURE AND JUDICIAL REVIEW REMAIN CONTROLS

**CONSTITUTIONAL METHOD**

- President's Rule and federal consent
- validity versus legitimacy

**RIGHTS CONTROL**

- differentiated entitlements
- proportionality and local minorities

**OPTIONAL STATUS —** This optional advanced stage is unnecessary for a competent core answer and adds constitutional-method refinement.

**ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Advanced analysis asks whether lawful asymmetry remains proportionate, participatory and faithful to federalism.**

END OF MASTER CANVAS • poster embeds this exact master • tiled pages are overlapping crops of the same pixels